

KAVANAUGH, J., concurring in part

this Court has voted to overrule multiple constitutional precedents. See, e.g., *Knick v. Township of Scott*, 588 U.S. 180 (2019); *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U.S. 230 (2019); *Janus v. State, County, and Municipal Employees*, 585 U.S. 878 (2018); *Hurst v. Florida*, 577 U.S. 92 (2016); *Obergefell v. Hodges*, 576 U.S. 644 (2015); *Johnson v. United States*, 576 U.S. 591 (2015); *Alleyne v. United States*, 570 U.S. 99 (2013); see also Baude, Precedent and Discretion, 2020 S. Ct. Rev. 1, 4 (forthcoming) (“Nobody on the Court believes in absolute stare decisis”).

Historically, moreover, some of the Court’s most notable and consequential decisions have entailed overruling precedent. See, e.g., *Obergefell v. Hodges*, 576 U.S. 644 (2015); *Citizens United v. Federal Election Comm’n*, 558 U.S. 310 (2010); *Montejo v. Louisiana*, 556 U.S. 778 (2009); *Crawford v. Washington*, 541 U.S. 36 (2004); *Lawrence v. Texas*, 539 U.S. 558 (2003); *Ring v. Arizona*, 536 U.S. 584 (2002); *Agostini v. Felton*, 521 U.S. 203 (1997); *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44 (1996); *Planned Parenthood of Southeastern Pa. v. Casey*, 505 U.S. 833 (1992);¹ *Payne v. Tennessee*, 501 U.S. 808 (1991); *Batson v. Kentucky*, 476 U.S. 79 (1986); *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U.S. 528 (1985); *Illinois v. Gates*, 462 U.S. 213 (1983); *United States v. Scott*, 437 U.S. 82 (1978); *Craig v. Boren*, 429 U.S. 190 (1976); *Taylor v. Louisiana*, 419 U.S. 522 (1975); *Brandenburg v. Ohio*, 395 U.S. 444 (1969) (*per curiam*); *Katz v. United States*, 389 U.S. 347 (1967); *Miranda v. Arizona*, 384 U.S. 436 (1966); *Malloy v. Hogan*, 378 U.S. 1 (1964); *Wesberry v. Sanders*, 376 U.S. 1 (1964); *Gideon v. Wain-*

¹In *Casey*, the Court reaffirmed what it described as the “central holding” of *Roe v. Wade*, 410 U.S. 113 (1973), the Court expressly rejected *Roe*’s trimester framework, and the Court expressly overruled two other important abortion precedents, *Akron v. Akron Center for Reproductive Health, Inc.*, 462 U.S. 416 (1983), and *Thornburgh v. American College of Obstetricians and Gynecologists*, 476 U.S. 747 (1986). See *Casey*, 505 U.S., at 861; *id.*, at 870, 873 (plurality opinion).